



Appeal Decision

Site visit made on 25 August 2026

by **C McDonagh BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal Ref: 6011301

Land at Doctors Hill, Bournheath, Bromsgrove B61 9JE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mark Donald against the decision of Bromsgrove District Council.
 - The application Ref is 26/00226/PIP.
 - The development proposed is 'erection of between 3no. and 5no. bungalows and houses.'
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Decision

1. The appeal is allowed and permission in principle is granted for the erection of between 3no. and 5no. bungalows and houses at Land at Doctors Hill, Bournheath, Bromsgrove B61 9JE in accordance with the terms of the application, Ref 26/00226/PIP.

Applications for costs

2. An application for costs has been made by Mark Donald against Bromsgrove District Council. This is the subject of a separate decision.

Preliminary Matters

3. The Planning Practice Guidance (PPG) advises that permission in principle is an alternative way of obtaining planning permission for housing-led development. This has 2 stages: the first stage (permission in principle) establishes whether a site is suitable in principle and the second (technical details consent) assesses detailed development proposals. This appeal relates to the first of these two stages.
4. The scope of the considerations for permission in principle is limited to location, land use and the amount of development. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted.
5. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published by the Government. This is a material consideration in the decision-making process from the day of publication. The main parties were given the opportunity to comment on the changes and the implications for the appeal, with their respective observations taken into account where relevant.

Main Issues

6. The main issue is whether the location of the appeal site is suitable for housing in principle having regard to the Green Belt, highway safety and the spatial strategy of the development plan for the distribution of housing.

Reasons

Whether Inappropriate in the Green Belt

7. The appeal site is located within the Green Belt where development is inappropriate unless it falls within one of the exceptions given in policy GB7 of the Framework. GB7(1)(g) relates to development which would utilise grey belt land, which is defined as previously developed land and/or any other land that, in either case, does not strongly contribute to any of purposes (a), (b), or (d) in policy GB2 of the Framework. I note the Council does not dispute that the appeal site could be considered grey belt land. To my mind, it does not strongly contribute to checking the unrestricted sprawl of large built-up areas, prevent neighbouring towns merging nor does it preserve the setting or special character of a historic town. As such, I concur that the site can be considered grey belt land.
8. I am therefore taken back to policy GB7(g) where parts i-iv must all be met. Given the scale of development, the proposal would not undermine the purposes of the Green Belt taken together across the plan area, and while there is some dispute that the Council cannot demonstrate a 5 year supply of deliverable housing land from local residents, the Council itself states that its supply is deficient. The proposal does not constitute major development and as such part iv does not apply.
9. Part iii of policy GB7(1)(g) relates to whether a location is considered sustainable with respect to policy TR3. This advises that development should be located where it can support sustainable patterns of movement, enable good accessibility for different users and make the most of existing and proposed transport infrastructure, subject to the given criteria.
10. Part 1a of TR3 includes development proposals which could generate a significant amount of movement, in the context of the area within which they would be situated, which should be in locations that are sustainable. As this is a proposal for permission in principle, the number of dwellings is in a range, although set against the size of Bournheath up to 5 dwellings would be a significant amount of movement. As such, this means the location should limit the need to travel, particularly by private car, and offer a genuine choice of transport modes for residents and users.
11. From my observations on my site visit, Bournheath has 3 pubs and a community hall, all of which would be relatively easy to reach by walking. The nearby 'small settlement' of Fairfield evidently includes a first school, a volunteer run shop, village hall and some recreational facilities. Walking or cycling to Fairfield would be along a number of narrow roads although many of these have a 30 miles per hour speed limit and have street lighting with stretches of footpath. As such, some people may choose to walk or cycle this route which could be done safely. This would limit the need to travel by private vehicle for prospective future residents.
12. There is a wider range of services in Catshill. Walking to here would be much more unlikely given the road increases in speed to the national limit and is largely unlit with few footpaths. The majority of journeys to Catshill would therefore likely be made by private vehicle, as would those further afield to locations such as the main town of Bromsgrove.

13. To that end, I am informed of a scheduled bus service, and the stop is located adjacent the appeal site on Doctor's Hill. However, this is evidently only in operation once a day on a Tuesday and Friday. This would clearly not offer a reasonable alternative to the private vehicle.
14. There is much discussion regarding an on-demand bus service whereby passengers can request a journey using an app to specify a pickup and dropoff location. This is evidently run by the County Council. I have regard to this process described by the appellant as well as the conflicting reviews of this service from interested parties who have objected to the scheme.
15. The photographic evidence provided by the appellant demonstrates it is possible to travel to settlements in the plan area, including the main town of Bromsgrove, from directly outside the appeal site. There is concern from the Council and local residents that this service is not suitable or could potentially be cancelled in the future, although there is nothing substantive before me to demonstrate this. From all that I have seen and read, the proposal would utilise an existing transport option and while doubts are raised as to its longevity, with additional residents using it this would offer increased support to this existing transport infrastructure.
16. This would meet parts 1b and 1e of policy TR3 in taking opportunities to utilising and improving existing transport infrastructure. Parts 1c and 1d of TR3 would not apply at this stage given the in-principle stage of the proposal.
17. I am also informed that the Connectivity Tool as directed by part 2 of policy TR3 scores the location 43 out of 100. Given the rural location this is perhaps not surprising, although I am informed that this is in the 90th percentile nationally. In this respect, in the context of the location the proposal would score relatively highly for connectivity.
18. Taken together, the proposal would meet the exception given in policy GB7(1)(g) of the Framework as well as policy BDP4 of the Bromsgrove District Plan 2011 – 2030 (DP) (adopted January 2017) which generally seeks to avoid inappropriate development in the Green Belt with similar exceptions. I have determined that the proposal does not constitute inappropriate development. The courts¹ have held that in this scenario, it is not necessary to consider its impact on the openness of the Green Belt, nor does the proposal need to demonstrate very special circumstances.

Highway Safety

19. I note the concerns of the Council and local residents regarding potential conflict between pedestrians walking along the adjacent road network to access services and facilities. Although the appellant advises that this is not a matter for permission in principle, given the locational aspect of the in-principle matter this can be considered at this stage, albeit with technical matters such as visibility splays reserved for the next stage should permission in principle be granted.
20. There is clearly some overlap between highway safety and the access to services, particularly as I have determined that some services could be utilised by walking. I observed on my site visit that this already occurs and given the profile of the road the speeds of motorists were very low. Further matters relating to highway safety

¹ Lee Valley Regional Park Authority, R (on the application of) v Epping Forest District Council & Anor (Rev 1) [2016] EWCA Civ 404.

would be considered at the next stage of this process as this appeal relates only to matters of acceptability in principle. This could include pedestrian connectivity in the overall site design or ensuring sufficient visibility is maintained.

21. Taken together, there is nothing before me to indicate that the proposal would be harmful to highway safety in principle. Any future development could therefore accord with policies BDP1 and BDP2 of the DP and paragraph TR4 of the Framework.

Whether Suitable Location

22. Policy BDP1 of the DP outlines the Council's approach to the presumption in favour of sustainable development which seeks to align with the aims of the Framework. Policy BDP2 sets out the settlement hierarchy of the plan area. Most development is to be directed to Bromsgrove as the 'main town', with other areas defined as either 'large settlements' or 'small settlements'. This approach seeks to promote sustainable communities based on the services and facilities that are available in each settlement and will assist villages to remain viable and provide for the needs of the catchment population that they serve. Bournheath is classified as a small settlement. Here, and in equivalent sized settlements, development is to be limited to suitable infill plots within settlement boundaries. The appeal site is located outside of the settlement boundary, and I note this is not disputed. It would therefore be contrary to policy BDP2 in this respect.
23. The glossary of the Framework offers a definition of settlement, which includes areas defined as such in the development plan and those using defined settlement boundaries. As such, I see no reason to disagree that the site is outside of the settlement by virtue of being outside of the boundary.
24. In this scenario, policy S5 of the Framework advises that this policy does not apply to development proposals in the Green Belt except where development would not be inappropriate in these locations. This includes through the application of policy GB7. In those cases, proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in this Framework, and applying paragraph 2 of S5.
25. Paragraph S5(2) sets out that situations where the development proposal would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances means that the benefits of approving development proposals are likely to be substantially outweighed by adverse effects. In this instance there are no relevant national decision making policies which state that the development should be refused.
26. Given the appeal relates to permission in principle, there are few design details before me at this stage. Consequently, the only conflict at this stage would be that the appeal site falls outside of the settlement boundary thereby conflicting with policy BDP2 of the DP.
27. The Council accepts that it currently cannot demonstrate 5 year supply of deliverable housing land. The contribution of 3-5 dwellings to its supply in this context is given positive but limited weight given the scale of the proposal. There would also be further limited positive weight attributed to social and economic benefits through construction jobs and the increased spend of future residents in

the local economy. As a result, the benefits would not be substantially outweighed by any adverse impacts.

Other Matters

28. I have had regard to the comments of interested parties, many of whom live close to the appeal site. Matters such as ecology, construction traffic, design, flood risk and impacts upon living conditions of neighbouring residents would be considered further in any subsequent technical details consent application. As I have clarified, this appeal relates to permission in principle and is considered only with matters of location, land use and amount of dwellings.
29. There is concern that the eastern side of the appeal site could be built out in future. I cannot assess what I do not have before me and there is nothing at this stage to indicate that this would occur. This would be subject to suitable assessment by the Council should it come to fruition. I have assessed the proposal on its own merits.

Conditions

30. The PPG confirms that it is not possible for conditions to be attached to a grant of permission in principle. I have therefore not considered such matters in the determination of this appeal.

Conclusion

31. Taking the above under consideration, as per policy S5 of the Framework development proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. I have found that the location of the proposal would be acceptable in principle while it would also meet the exception given in policy GB7(1)(g) of the Framework in order to not constitute inappropriate development in the Green Belt. Matters relating to highway safety are largely premature although those issues raised which I could assess at this stage I have found to be acceptable.
32. The proposal conflicts with the development plan insofar as it relates to the spatial distribution of housing. The proposal would accord with the relevant provisions of the Framework which would be sufficient to outweigh the conflict with the development plan, particularly given the lack of a 5 year housing land supply of the Council. Accordingly, for the reasons given above, I conclude that the appeal is allowed.

C McDonagh

INSPECTOR